

Smt. Raj @ Usha vs The State & Ors on 21 December, 2010

IN THE COURT OF SHRI SANJEEV KUMAR SINGH :
ADMINISTRATIVE CIVIL JUDGE (CENTRAL) : DELHI

Petition No.: 527/2004
Unique ID No: 02401C5545032004

In the matter of:-

1. Smt. Raj @ Usha,
W/o Late Jagmal Singh
2. Jyotika
D/o Late Jagmal Singh
3. Deepak,
S/o Late Jagmal Singh
4. Priyanka,
D/o Late Jagmal Singh
5. Deepika,
D/o Late Jagmal Singh
6. Suraj,
S/o Late Sh. Jagmal Singh
7. Monica,
D/o Late Jagmal Singh
8. Aakash,
S/o Late Jagmal Singh

All R/o A-12, Siddarth Basti,
Jangpura, Bhogal, Delhi.

Petition No. 527/04

Page 1/7

(Petitioners no. 2-8 are minors, represented through their mother,
next friend and natural guardian, Smt. Raj the petitioner no. 1)

....Petitioners

Versus

The State & Ors.

.....Respondents

Date of Institution : 02.08.2004
Date of order when reserved : 21.12.2010
Date of order when announced : 21.12.2010

J U D G M E N T:

This is a succession petition filed by the Petitioners namely Smt. Raj @ Usha, Jyotika Deepak, Priyanka, Deepika, Suraj, Monica, Aakash for the grant of Succession Certificate in their favour qua the debts and securities left behind by deceased Jagmal Singh, who died on 13.12.2003 at Delhi.

2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'The Statesman' dated 01.10.2010, but none has appeared from general public to oppose or contest the present petition.

3 Petitioner no. 1, Smt. Raj @ Usha along with seven children namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica, Aakash i.e. petitioner no. 2 to 8 are seeking succession certificate qua the debts and securities of deceased, Jagmal Singh who expired on 13.12.2003 and his death certificate is Ex. PW-1/C. 4 Petitioner no. 1 claims herself to be the widow of deceased, Jagmal Singh. Subsequently, objectors Raj Bhushan and Vimlesh filed objections in the present petition wherein, they also claim that they are legally wedded wives of the deceased. The mother of the deceased predeceased him. The deceased made no WILL during his lifetime. The deceased was working with CPWD. A letter/details have been filed by CPWD furnishing the outstanding dues of the deceased. The same is Ex. PW-1/D. The deceased was ordinarily a resident of Delhi.

5 Objectors in this petition namely Raj Bhushan and Smt. Vimlesh have filed objections in this petition claiming themselves to be the legally wedded wife of the deceased. It is admitted by both the objectors in their objections that the deceased was married to Raj Bhushan on 27.12.1977. No issue was born out of this wedlock but deceased and Raj Bhushan adopted one son namely Shivam Raj. These facts are not disputed by the petitioner and another objector, Vimlesh. Subsequently, the deceased married with the petitioner, Raj @ Usha on 11.05.1984. There was no divorce between the first wife and the deceased. Out of this wedlock three children namely Deepika, Monica and Aakash were born. This fact is also not disputed by both the objectors. Again, without dissolution of these two marriages, the deceased again married Vimlesh in the year 1990 and gave birth to the four children namely Deepak, Priyanka, Suraj and Jyotika. Again this fact is not disputed by the petitioner as well as by the objector, Smt. Raj Bhushan. A separate statement of petitioner no. 1 as well as both the objectors Smt. Raj Rani @ Raj Bhushan and Smt. Vimlesh was recorded on 11.08.2008 in this regard. Petitioner no. 1 also claims that she is the nominee in the service records of the deceased, Jagmal Singh. Hence, she is entitled for the grant of succession certificate and none of the co-objectors are entitled.

6 I have gone through the records as well as statement adduced by the parties and heard the arguments.

7 The present case is crystal clear to the fact that petitioner no. 1 got married with the deceased on 11.05.1984. Prior to the marriage with the petitioner, the deceased was earlier married with Raj Bhushan and the statement of the parties have also been recorded with this regard in which, they have categorically stated that deceased was firstly married with Raj Bhushan on 27.12.1977 and thereafter, deceased married with the petitioner no. 1, Raj @ Usha on 11.05.1984 and lastly,

deceased was married with Smt. Vimlesh on 1990. These marriages are not disputed by both the parties and the parties have admitted that the children whose names are mentioned in the petition as petitioners were born from these marriages. It is also stated in the statement of the petitioner recorded on 11.08.2008 that prior to the marriage with the petitioner no. 1, the marriage of deceased with Smt. Raj Bhushan was not dissolved by decree of divorce from a competent Court of law.

8 Legal proportion in this regard is well settled that as per provisions of Hindu Marriage Act that 'Until the first marriage is dissolved or the earlier spouse dies, no Hindu can marry again'. The second marriage, while the first marriage is subsisting, is void. Thereby meaning, that in this case, marriage of deceased with Smt. Raj Bhushan, petitioner no. 1 and objector, Vimlesh is void in terms of Hindu Marriage Act. Accordingly, none of these two females can inherit any of the assets of deceased. Deceased died intestate. Section 5 read with 11 of Hindu Marriage Act provides that second marriage of a person when first spouse is living is void. Even if such a second marriage is performed with the consent of earlier spouse still the second marriage would be void.' 9 The children born from the void marriages as well as the adopted son from first marriage will have equal right, inheritance of the assets of the deceased. They are also entitled equal right in under Section 16 of the Hindu Marriage Act.

10 Ld. Counsel for the petitioner no. 1 stated that petitioner was the nominee in the service records of the deceased. So far as nomination is concerned, law is well settled that the nominee is merely a trustee and a receiving hand who receives the securities on behalf of actual successor. Merely by nomination, a person does not step into the shoes of the successor. It was so held in the case of Sharbati Devi Vs. Usha Devi AIR 1984 SC 346.

11 The Ld. Predecessor of this Court has already decided the objections of both the objectors and held that objector, Raj Bhushan is the legally wedded wife of the deceased. This objector and the deceased adopted one son namely Shivam Raj. Deceased gave birth to seven children from the second and third wife. Therefore, objector, Raj Bhushan, her adopted son, Shivam Raj and remaining seven children namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica, Aakash are entitled to equal share i.e. 1/9th share each. Petitioner no. 1, Raj @ Usha and Smt. Vimlesh are not entitled to get succession certificate as they are the second wives of the deceased and in the presence of first wife, they are not entitled to get any share in the debts and securities of the deceased.

12 Therefore, in view of the above, I am of the considered opinion that there is no impediment for grant of Succession Certificate in favour of Petitioners no. 2 to 8 namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica & Aakash and in favour of objectors, Shivam Raj and Raj Bhushan qua the debts and securities of deceased Jagmal Singh. I, accordingly direct that a Succession Certificate be issued in favour of Petitioners no. 2 to 8 namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica, Aakash and in favour of objectors, Shivam Raj and Raj Bhushan in equal shares i.e. 1/9th share each qua the debts and securities of deceased Jagmal Singh in terms of Ex. PW-1/D, on filing of requisite court fee and on furnishing an Indemnity Bond with one surety within 15 days.

Objector, Smt. Raj Bhushan is also entitled for the family pension of the deceased as per Family Pension in vogue.

No further orders are required to be passed in the matter. File be consigned to Record Room.

Announced in the open court
on 21.12.2010

(SANJEEV KUMAR SINGH)
Administrative Civil Judge(Central)
Delhi

21.12.2010

Pr: Ld. Counsel for the Petitioners.
Arguments heard.
Put up for orders after lunch.

ACJ (Central)/Delhi
21.12.2010

21.12.2010

(After lunch)

Pr: None.

Vide separate judgment announced in the open court today, Succession Certificate is ordered to be issued in favour of Petitioners no. 2 to 8 namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica & Aakash and in favour of objectors, Shivam Raj and Raj Bhushan qua the debts and securities of deceased Jagmal Singh. I, accordingly direct that a Succession Certificate be issued in favour of Petitioners no. 2 to 8 namely Jyotika, Deepak, Priyanka, Deepika, Suraj, Monica, Aakash and in favour of objectors, Shivam Raj and Raj Bhushan in equal shares i.e. 1/9th share each qua the debts and securities of deceased Jagmal Singh in terms of Ex. PW-1/D, on filing of requisite court fee and on furnishing an Indemnity Bond with one surety within 15 days.

Objector, Smt. Raj Bhushan is also entitled for the family pension of the deceased as per Family Pension in vogue.

No further orders are required to be passed in the matter. File be consigned to Record Room.

(Sanjeev Kumar Singh) ACJ (Central)/Delhi 21.12.2010